



Registration of a Charge

Company Name: **ACTIUM MIDCO 3 (UK) LIMITED**

Company Number: **15736277**



XD9ZQ020

Received for filing in Electronic Format on the: **21/08/2024**

Details of Charge

Date of creation: **16/08/2024**

Charge code: **1573 6277 0002**

Persons entitled: **GLAS TRUST CORPORATION LIMITED AS SECURITY AGENT**

Brief description:

Contains fixed charge(s).

Authentication of Form

This form was authorised by: **a person with an interest in the registration of the charge.**

Authentication of Instrument

Certification statement: **I CERTIFY THAT SAVE FOR MATERIAL REDACTED PURSUANT TO S.859G OF THE COMPANIES ACT 2006 THE ELECTRONIC COPY INSTRUMENT DELIVERED AS PART OF THIS APPLICATION FOR REGISTRATION IS A CORRECT COPY OF THE ORIGINAL INSTRUMENT.**

Certified by: **MILBANK LLP**



CERTIFICATE OF THE REGISTRATION OF A CHARGE

Company number: 15736277

Charge code: 1573 6277 0002

The Registrar of Companies for England and Wales hereby certifies that a charge dated 16th August 2024 and created by ACTIUM MIDCO 3 (UK) LIMITED was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 21st August 2024 .

Given at Companies House, Cardiff on 22nd August 2024

The above information was communicated by electronic means and authenticated by the Registrar of Companies under section 1115 of the Companies Act 2006



Companies House



**THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES**

PLEDGE AGREEMENT

Dated as of

August 16, 2024

among

THE PLEDGORS FROM TIME TO TIME
PARTY HERETO

and

GLAS TRUST CORPORATION,
as Security Agent

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PLEDGE AGREEMENT (this "Pledge Agreement"), dated as of August 16, 2024, between ACTIUM MIDCO 3 (UK) LIMITED, a limited liability company incorporated in England & Wales with registered number 15736277 (the "Initial Pledgor") and each Additional Pledgor from time to time party hereto (each of the foregoing, a "Pledgor"), and GLAS TRUST CORPORATION LIMITED, as security agent (the "Security Agent") for the Secured Parties.

WHEREAS, the Initial Pledgor has entered into a Senior Facilities Agreement dated as of August 16, 2024 (as amended, supplemented, restated or otherwise modified and in effect from time to time, the "Senior Facilities Agreement") with, among others, Actium Midco 2 (UK) Limited (the "Parent"), the Initial Pledgor, as the company, and Actium Bidco (US), Ltd. ("US Bidco"), collectively with the Parent and the Initial Pledgor, the "Original Borrowers"), GLAS USA LLC as agent (in such capacity, the "Agent") and the Security Agent, pursuant to which, among other things, the Lenders have agreed to make loans or otherwise to extend credit to the Original Borrowers and certain other members of the Group upon the terms and subject to the conditions specified in the Senior Facilities Agreement and the Initial Pledgor has agreed to guarantee the obligations of the Finance Parties under the Debt Documents subject to certain limitations set out therein;

WHEREAS, one or more additional subsidiaries of the Original Borrowers (each, an "Additional Pledgor") may hereafter become party to the Facilities Agreement, as borrowers and/or guarantors, or otherwise be required to grant Liens to secure the Secured Obligations; and

WHEREAS, in order to secure the Secured Obligations and as required under the Senior Facilities Agreement, each Pledgor has agreed to execute and deliver to the Security Agent this Pledge Agreement.

NOW, THEREFORE, in consideration of the premises and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

Section 1. Definitions.

1.01. Definition of Terms Used Herein Generally. All capitalized terms used but not defined herein shall have the meanings specified in the Senior Facilities Agreement or the Intercreditor Agreement (as applicable). All terms used herein and defined in the NYUCC shall have the same definitions herein as specified therein; provided, however, that if a term is defined in Article 9 of the NYUCC differently than in another Article of the NYUCC, the term has the meaning specified in Article 9 of the NYUCC.

1.02. Definition of Certain Terms Used Herein. As used herein, the following terms shall have the following meanings:

"Bankruptcy Code" means Title 11 of the United States Code, 11 U.S.C. 101 et seq., entitled "Bankruptcy".

"Code" means the United States Internal Revenue Code of 1986.

"Debtor Relief Laws" means the Bankruptcy Code, and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization, or similar debtor relief laws of the United States or other applicable jurisdictions from time to time in effect and affecting the rights of creditors generally.

"Default Rate" means the default interest rate calculated pursuant to the Senior Facilities Agreement.

"Equity Interests" means shares of capital stock and other ownership interests in a person.

"Intercreditor Agreement" means the intercreditor agreement dated on or about the date of this Pledge Agreement, between, among others, Parent, the Initial Pledgor and US Bidco as original debtors, the Agent, the Security Agent and the financial institutions named therein as original senior lenders.

"Lien" means (a) a mortgage, charge, pledge, hypothecation, lien or other encumbrance securing any obligation of any person; (b) any agreement or arrangement entered into for the purpose of conferring security or placing the beneficiary of such agreement or arrangement in a preferred position in an insolvency vis-à-vis other unsecured creditors; and (c) any other type of preferential arrangement (including any title transfer and retention arrangement) having the effect of creating security.

"NYUCC" means the Uniform Commercial Code as in effect in the State of New York from time to time.

"Pledged Collateral" has the meaning specified in Section 2.01.

"Pledged Collateral Schedule" means, collectively, Schedule 1 hereto as the same may be updated or modified from time to time by the applicable Pledgor in accordance with the terms hereof.

"Pledged Interests" has the meaning specified in Section 2.02(b).

"Pledged Securities" means Pledged Stock and Pledged Interests.

"Pledged Stock" has the meaning specified in Section 2.02(a).

"Securities Act" has the meaning specified in Section 7.01(d).

"Security Interest" means any security interest granted by the Pledgors pursuant to Section 2.01, as well as all other security interests created or assigned as additional security for the Secured Obligations pursuant to the provisions of this Pledge Agreement.

"Security Period" means the period beginning on the date of this Security Agreement and ending on the Final Discharge Date.

"UCC" means the Uniform Commercial Code as in effect in any jurisdiction.

1.03. Rules of Interpretation. With reference to this Pledge Agreement, unless otherwise specified herein:

(a) Clause 1.2 (Construction) of the Intercreditor Agreement shall apply to this Pledge Agreement.

(b) In the computation of periods of time from a specified date to a later specified date, the word "from" means "from and including"; the words "to" and "until" each mean "to but excluding"; and the word "through" means "to and including."

(c) Article, section and subsection headings herein are included for convenience of reference only and shall not affect the interpretation of this Pledge Agreement.

(d) This Pledge Agreement is subject to the terms of the Intercreditor Agreement and the Senior Facilities Agreement. In the event of any conflict or inconsistency between the terms of this Pledge Agreement and the Intercreditor Agreement or the Senior Facilities Agreement, the Intercreditor Agreement or the Senior Facilities Agreement (as applicable) shall prevail (and that, if requested to do so by (and at the cost of) the Pledgors, the Security Agent will enter into such amendments, waivers or consents as are necessary to remove such conflict).

(e) Notwithstanding anything to the contrary in this Pledge Agreement, the terms of this Pledge Agreement shall not operate or be construed so as to prohibit or restrict any transaction, matter, or other step (or any Pledgor taking or entering into the same or dealing in any manner whatsoever in relation to any asset (including all rights, claims, benefits, proceeds and documentation, and contractual counterparties in relation thereto)) not prohibited by the Debt Documents. The Security Agent shall promptly enter into such documentation and/or take such other action in relation to the Debt Documents as is required by the Pledgor (acting reasonably) in order to facilitate any such transaction, matter or other step, including, but not limited to, by way of executing any confirmation, consent to dealing, release or other similar or equivalent document provided that any costs and expenses incurred by the Security Agent entering into such documentation and/or taking such other action at the request of any Pledgor pursuant to this Section 1.3(e) shall be for the account of such Pledgor.

Section 2. Pledge.

2.01. Grant of Security Interest. Each Pledgor hereby pledges to the Security Agent, and grants to the Security Agent, in each case for the benefit of the Security Agent and each other Secured Party, a first priority security interest in the collateral described in Section 2.02 (collectively, the "Pledged Collateral") to secure the payment or performance, as the case may be, in full of the Secured Obligations, whether at stated maturity, by acceleration or otherwise.

2.02. Description of Pledged Collateral. The Pledged Collateral with respect to each Pledgor is described as follows and on any separate schedules at any time furnished by or on behalf of such Pledgor to the Security Agent (which schedules are hereby deemed part of this Pledge Agreement):

(a) all right, title and interest of each Pledgor as a holder in and to (i) all Equity Interests in the company described under such Pledgor's name on the Pledged Collateral Schedule and all depositary shares and other rights in respect of such Equity Interests, and (ii) all shares of stock, certificates (if any), instruments or other documents evidencing or representing the same in each case whether now owned or hereafter acquired by such Pledgor and whether certificated or uncertificated (collectively, the "Pledged Stock");

(b) all right, title and interest of each Pledgor in and to all membership, partnership and similar Equity Interests issued to such Pledgor by the company described under such Pledgor's name on the Pledged Collateral Schedule, whether certificated or uncertificated, together with all capital and other accounts maintained by such Pledgor with respect to such Equity Interests and all income, gain, loss, deductions and credits allocated or allocable to such accounts, in each case whether now owned or hereafter acquired by such Pledgor (collectively, the "Pledged Interests");

(c) all right, title and interest of each Pledgor in and to all present and future payments, dividends, distributions, instruments, compensation, property, assets, interests and rights in connection with or related to the collateral listed in clauses (a) and (b) above, and all monies due or to become due and payable to such Pledgor in connection with or related to such collateral or otherwise paid, issued or distributed from time to time in respect of or in exchange therefor, and any certificate (if any), instrument or other document evidencing or representing the same (including, without limitation, all proceeds of dissolution or liquidation); and

(d) all proceeds of all of the foregoing, of every kind.

2.03. Certain Limitations. Notwithstanding anything to the contrary herein or in any other Debt Document, but subject to any applicable guarantee limitations set out in the Debt Documents, the maximum liability of each Pledgor under this Pledge Agreement and under the other Debt Documents shall not exceed an amount equal to the largest amount that would not render such Pledgor's obligations hereunder and under such other Debt Documents subject to avoidance under Section 548 of the Bankruptcy Code or any equivalent provision of any other Debtor Relief Law, in all cases before taking into account any liabilities of such Pledgor under any debt, guarantee or security document that is not a Debt Document.

2.04. Delivery of Certificates, Instruments, Etc.

(a) Each Pledgor shall deliver to the Security Agent on the request of the Security Agent:

(i) all original shares of stock, certificates, instruments and other documents evidencing or representing Pledged Collateral of such Pledgor as of the date hereof (other than Pledged Collateral that this Pledge Agreement specifically permits such Pledgor to retain) as soon as reasonably practicable after the execution and delivery of this Pledge Agreement; and

(ii) the original shares of stock, certificates, instruments or other documents evidencing or representing Pledged Collateral of such Pledgor received after the date

hereof (other than Pledged Collateral that this Pledge Agreement specifically permits such Pledgor to retain) as soon as reasonably practicable after such Pledgor's receipt thereof.

(b) All Pledged Collateral delivered to the Security Agent shall be accompanied by duly signed but undated stock transfer forms.

2.05. Registration. At any time following the occurrence and during the continuance of an Acceleration Event, the Security Agent may cause all or any of the Pledged Collateral to be transferred to or registered in its name or the name of its nominee or nominees.

2.06. Authorization to File Financing Statements. Each Pledgor hereby irrevocably authorizes the Security Agent at any time and from time to time during the Security Period to file in any jurisdiction in which the UCC has been adopted any initial financing statements and amendments thereto that (a) describe the Pledged Collateral, and (b) contain any other information required by part 5 of Article 9 of the UCC for the sufficiency or filing office acceptance of any initial financing statement or amendment, including whether such Pledgor is an organization, the type of organization and any organization identification number issued to such Pledgor. Subject to the Agreed Security Principles, each Pledgor agrees to furnish any such information to the Security Agent as soon as reasonably practicable upon request. Each Pledgor also ratifies its authorization for the Security Agent to have filed in any UCC jurisdiction any like initial financing statements or amendments thereto if filed prior to the date hereof.

2.07. [Reserved].

Section 3. Representations and Warranties. Each Pledgor hereby represents and warrants to the Security Agent on the date of this Pledge Agreement that:

3.01. Pledgor's Legal Status. (a) Such Pledgor is an organization of the type, and is organized in the jurisdiction, set forth under such Pledgor's name on Schedule 1 hereto and (b) Schedule 1 hereto sets forth such Pledgor's organizational identification number or states that such Pledgor has none.

3.02. Pledgor's Legal Name. Such Pledgor's exact legal name is that set forth under such Pledgor's name on Schedule 1 hereto and on the signature page hereof.

3.03. Pledgor's Locations. Schedule 1 hereto sets forth such Pledgor's place of business or (if it has more than one place of business) its chief executive office, as well as its mailing address if different.

3.04. Title to Collateral. The Pledged Collateral is owned by such Pledgor free and clear of any Lien, except for Liens permitted pursuant to the other Senior Secured Documents.

3.05. Pledged Collateral. A complete and accurate list and description of all Pledged Collateral of such Pledgor is set forth on the Schedule 1 hereto.

3.06. All of Pledgor's Interests. As of the date hereof, the Pledged Collateral of such Pledgor set forth on Schedule 1 constitutes all of the Pledged Collateral of such Pledgor.

Section 4. Covenants. Each Pledgor hereby covenants and agrees with the Security Agent as follows:

4.01. Pledgor's Legal Status. Such Pledgor shall not change its type of organization, jurisdiction of organization or other legal structure without providing written notice to the Security Agent as soon as reasonably practicable (but in any case within 60 days) following such change.

4.02. Pledgor's Name. Such Pledgor shall not change its name without providing written notice to the Security Agent as soon as reasonably practicable (but in any case within 60 days) following such change.

4.03. Locations. Such Pledgor shall not change its chief executive office without providing written notice to the Security Agent as soon as reasonably practicable (but in any case within 60 days) following such change.

4.04. Further Assurances. Subject to the Agreed Security Principles and other transactions permitted and/or not prohibited by the Debt Documents:

(a) if such Pledgor shall at any time hold or acquire any certificated securities of any wholly-owned Obligor organized or formed in the United States, any State thereof or the District of Columbia, it shall as soon as reasonably practicable notify the Security Agent, and, at the request of the Security Agent, (i) deliver a supplement to the Pledged Collateral Schedule including the information with respect to such certificated securities and (ii) endorse, assign and deliver the same to the Security Agent, accompanied by such instruments of transfer or assignment duly executed in blank as the Security Agent may from time to time specify; and

(b) such Pledgor will, from time to time, at its expense, as soon as reasonably practicable execute and deliver all further instruments and documents and take all further action that may be necessary, or that the Security Agent may reasonably request, in order to insure the attainment, perfection and first priority status of any Security Interest granted or purported to be granted hereby or to enable Security Agent to exercise and enforce its rights and remedies hereunder with respect to any Pledged Collateral of such Pledgor.

Section 5. Voting Rights and Certain Payments.

5.01. Voting Rights and Payments Prior to an Acceleration Event. So long as no Acceleration Event has occurred and be continuing, each Pledgor shall be entitled:

(a) to exercise, as it shall think fit the voting power with respect to the Pledged Collateral of such Pledgor; and

(b) except as otherwise provided in Section 5.02, to receive and retain for its own account any and all payments, proceeds, dividends, distributions, monies, compensation, property, assets, instruments or rights to the extent such are permitted and/or not prohibited by the terms of the Debt Documents.

5.02. Voting Rights and Ordinary Payments After an Acceleration Event. Upon the occurrence and during the continuance of any Acceleration Event, all rights of such Pledgor to exercise or refrain from exercising the voting and other consensual rights that it would otherwise be entitled to exercise pursuant to Section 5.01(a) and to receive the payments, proceeds, dividends, distributions, monies, compensation, property, assets, instruments or rights that such Pledgor would otherwise be authorized to receive and retain pursuant to Section 5.01(b) shall cease, and thereupon the Security Agent shall be entitled to exercise all voting power with respect to the Pledged Collateral of such Pledgor and to receive and retain, as additional collateral hereunder, any and all payments, proceeds, dividends, distributions, monies, compensation, property, assets, instruments or rights at any time declared or paid upon any of the Pledged Collateral of such Pledgor during such Acceleration Event which is continuing and otherwise to act with respect to the Pledged Collateral of such Pledgor as outright owner thereof.

Section 6. All Payments in Trust. All payments, proceeds, dividends, distributions, monies, compensation, property, assets, instruments or rights that are received by any Pledgor contrary to the provisions of Section 5 shall be received and held in trust for the benefit of the Security Agent, shall be segregated by such Pledgor from other funds of such Pledgor and shall be forthwith paid over to the Security Agent as Pledged Collateral in the same form as so received (with any necessary endorsement).

Section 7. Remedies.

7.01. Disposition Upon an Acceleration Event and Related Provisions.

(a) Upon the occurrence and during the continuance of an Acceleration Event, the Security Agent may exercise in respect of the Pledged Collateral, in addition to other rights and remedies provided for herein or otherwise available to it, all rights of voting, exercise and conversion with respect to the Pledged Collateral and all of the rights and remedies of a secured party upon default under the NYUCC at that time (whether or not applicable to the affected Pledged Collateral) and may also, without obligation to resort to other security, at any time and from time to time sell, resell, assign and deliver, in its sole discretion, all or any of the Pledged Collateral, in one or more parcels at the same or different times, and all right, title and interest, claim and demand therein and right of redemption thereof, on any securities exchange on which any Pledged Collateral may be listed, or at public or private sale, for cash, upon credit or for future delivery, and in connection therewith the Security Agent may grant options.

(b) If any of the Pledged Collateral is sold by the Security Agent upon credit or for future delivery, the Security Agent shall not be liable for the failure of the purchaser to purchase or pay for the same and, in the event of any such failure, the Security Agent may resell such Pledged Collateral. In no event shall any Pledgor be credited with any part of the proceeds of sale of any Pledged Collateral until cash payment therefor has actually been received by the Security Agent.

(c) The Security Agent may purchase any Pledged Collateral at any public sale and, if any Pledged Collateral is of a type customarily sold in a recognized market or is of the type that is the subject of widely distributed standard price quotations, the Security Agent may purchase such Pledged Collateral at private sale, and in each case may make payment therefor

by any means, including, without limitation, by release or discharge of Secured Obligations in lieu of cash payment.

(d) Each Pledgor recognizes that the Security Agent may be unable to effect a public sale of all or part of the Pledged Collateral consisting of securities by reason of certain prohibitions contained in the Securities Act of 1933, as amended (the "Securities Act"), or in applicable "blue sky" or other state securities laws, as now or hereafter in effect, but may be compelled to resort to one or more private sales to a restricted group of purchasers who will be obliged to agree, among other things, to acquire such securities for their own account, for investment and not with a view to the distribution or resale thereof. Each Pledgor agrees that any such Pledged Collateral sold at any such private sale may be sold at a price and upon other terms less favorable to the seller than if sold at public sale and that each such private sale shall be deemed to have been made in a commercially reasonable manner. The Security Agent shall have no obligation to delay the sale of any such securities for the period of time necessary to permit the issuer of such securities, even if such issuer would agree, to register such securities for public sale under the Securities Act. Each Pledgor agrees that private sales made under the foregoing circumstances shall be deemed to have been made in a commercially reasonable manner.

(e) No demand, advertisement or notice, all of which are hereby expressly waived, shall be required in connection with any sale or other disposition of any part of the Pledged Collateral that threatens to decline speedily in value or that is of a type customarily sold on a recognized market; otherwise the Security Agent shall give each applicable Pledgor at least 10 days' prior notice of the time and place of any public sale and of the time after which any private sale or other disposition is to be made, which notice each Pledgor agrees is commercially reasonable.

(f) The Security Agent shall not be obligated to make any sale of Pledged Collateral if it shall determine not to do so, regardless of the fact that notice of sale may have been given. The Security Agent may, without notice or publication, adjourn any public or private sale or cause the same to be adjourned from time to time by announcement at the time and place fixed for sale, and such sale may, without further notice, be made at the time and place to which the same was so adjourned.

(g) The remedies provided herein in favor of the Security Agent shall not be deemed exclusive, but shall be cumulative, and shall be in addition to all other remedies in favor of the Security Agent existing at law or in equity.

(h) To the extent that applicable law imposes duties on the Security Agent to exercise remedies in a commercially reasonable manner, each Pledgor acknowledges and agrees that it is not commercially unreasonable for the Security Agent (i) to advertise dispositions of Pledged Collateral through publications or media of general circulation; (ii) to contact other Persons, whether or not in the same business as the applicable Pledgor, for expressions of interest in acquiring all or any portion of the Pledged Collateral of such Pledgor; (iii) to hire one or more professional auctioneers to assist in the disposition of Pledged Collateral; (iv) to dispose of Pledged Collateral by utilizing Internet sites that provide for the auction of assets of the types included in the Pledged Collateral or that have the reasonable capability of doing so, or that match buyers and sellers of assets; (v) to disclaim disposition warranties or (vi) to the extent deemed

appropriate by the Security Agent, to obtain the services of brokers, investment bankers, consultants and other professionals to assist the Security Agent in the disposition of any of the Pledged Collateral. Each Pledgor acknowledges that the purpose of this clause (h) is to provide non-exhaustive indications of what actions or omissions by the Security Agent would not be commercially unreasonable in the Security Agent's exercise of remedies against the Pledged Collateral and that other actions or omissions by the Security Agent shall not be deemed commercially unreasonable solely on account of not being indicated in this clause (h). Without limiting the foregoing, nothing contained in this clause (h) shall be construed to grant any rights to any Pledgor or to impose any duties on the Security Agent that would not have been granted or imposed by this Pledge Agreement or by applicable law in the absence of this clause (h).

7.02. Security Agent Appointed Attorney-in-Fact.

To effectuate the terms and provisions hereof, each Pledgor hereby appoints, during the Security Period, the Security Agent as such Pledgor's attorney-in-fact for the purpose, from and after the occurrence and during the continuance of an Acceleration Event, of carrying out the provisions of this Pledge Agreement and taking any action and executing any instrument that the Security Agent from time to time in the Security Agent's reasonable discretion may deem necessary or advisable to accomplish the purposes of this Pledge Agreement. Without limiting the generality of the foregoing, the Security Agent shall, from and after the occurrence and during the continuance of an Acceleration Event, have the right and power to:

(a) receive, endorse and collect all checks and other orders for the payment of money made payable to each Pledgor representing any interest or dividend or other distribution or amount payable in respect of the Pledged Collateral of such Pledgor or any part thereof and to give full discharge for the same;

(b) execute endorsements, assignments or other instruments of conveyance or transfer with respect to all or any of the Pledged Collateral;

(c) exercise all rights of each Pledgor as owner of the Pledged Collateral of such Pledgor including, without limitation, the right to sign any and all amendments, instruments, certificates, proxies, and other writings necessary or advisable to exercise all rights and privileges of (or on behalf of) the owner of the Pledged Collateral, including, without limitation, all voting rights with respect to the Pledged Collateral;

(d) ask, demand, collect, sue for, recover, compound, receive and give acquittance and receipts for moneys due and to become due under or in respect of any of the Pledged Collateral;

(e) file any claims or take any action or institute any proceedings that the Security Agent may deem necessary or desirable for the collection of any of the Pledged Collateral or otherwise to enforce the rights of the Security Agent with respect to any of the Pledged Collateral; and

(f) generally to sell, transfer, pledge, make any agreement with respect to or otherwise deal with any of the Pledged Collateral as fully and completely as though the Security Agent were the absolute owner thereof for all purposes, and to do, at the Security Agent's

option and the Pledgors' expense, at any time or from time to time, all acts and things that the Security Agent deems reasonably necessary to protect, preserve or realize upon the Pledged Collateral.

(g) Each Pledgor hereby ratifies and approves all acts of the Security Agent made or taken pursuant to this Section 7.02 (provided that each Pledgor, by virtue of such ratification, does not release any claim that such Pledgor may otherwise have against the Security Agent for any such acts made or taken by the Security Agent through gross negligence or willful misconduct). Neither the Security Agent nor any person designated by the Security Agent shall be liable for any acts or omissions or for any error of judgment or mistake of fact or law, except such as may result from the Security Agent's gross negligence or willful misconduct as determined by a court of competent jurisdiction in a final and nonappealable judgment. This power, being coupled with an interest, is irrevocable so long as this Pledge Agreement shall remain in force.

7.03. Security Agent's Duties of Reasonable Care.

(a) The Security Agent shall have the duty to exercise reasonable care in the custody and preservation of any Pledged Collateral in its possession, which duty shall be fully satisfied if such Pledged Collateral is accorded treatment substantially equal to that which the Security Agent accords its own property and, with respect to any calls, conversions, exchanges, redemptions, offers, tenders or similar matters relating to any such Pledged Collateral (herein called "Events"),

(i) the Security Agent gives each Pledgor of such Pledged Collateral reasonable notice of the occurrence of any Events of which the Security Agent has received actual knowledge, which Events are applicable to any securities that are in bearer form or are not registered and held in the name of the Security Agent or its nominee (such Pledgor agreeing to give the Security Agent reasonable notice of the occurrence of any Events of which such Pledgor has knowledge, which Events are applicable to any securities in the possession of the Security Agent); and

(ii) the Security Agent endeavors to take such action with respect to any of the Events as each Pledgor may reasonably and specifically request in writing in sufficient time for such action to be evaluated and taken or, if the Security Agent reasonably believes that the action requested would adversely affect the value of the Pledged Collateral of such Pledgor as collateral or the collection of the Secured Obligations, or would otherwise prejudice the interests of the Security Agent, the Security Agent gives reasonable notice to such Pledgor that any such requested action will not be taken and, if the Security Agent makes such determination or if such Pledgor fails to make such timely request, the Security Agent takes such other action as it deems advisable in the circumstances.

(b) Except as hereinabove specifically set forth, the Security Agent shall have no further obligation to ascertain the occurrence of, or to notify each Pledgor with respect to, any Events and shall not be deemed to assume any such further obligation as a result of the establishment by the Security Agent of any internal procedures with respect to any securities in its possession, nor shall the Security Agent be deemed to assume any other responsibility for, or obligation or duty with respect to, any Pledged Collateral or its use of any nature or kind, or any

matter or proceedings arising out of or relating thereto, including, without limitation, any obligation or duty to take any action to collect, preserve or protect its or any Pledgor's rights in the Pledged Collateral or against any prior parties thereto, but the same shall be at each Pledgor's sole risk and responsibility at all times.

(c) Each Pledgor waives any restriction or obligation imposed on the Security Agent under Sections 9-207(c)(1) and 9-207(c)(2) of the NYUCC.

7.04. Security Agent May Perform. If any Pledgor fails to perform any action required pursuant to Section 4, the Security Agent may (but shall have no obligation to) itself, perform or cause performance of such action if such Pledgor has failed to take such action within ten Business Days of being notified of such failure and being requested to comply by the Security Agent or at any time following the occurrence of an Acceleration Event which is continuing.

Section 8. Suretyship Waivers by Pledgor; Obligations Absolute.

(a) Each Pledgor waives demand, notice, protest, notice of acceptance of this Pledge Agreement, notice of loans made, credit extended, collateral received or delivered or other action taken in reliance hereon and all other demands and notices of any description thereof, all in such manner and at such time or times as the Security Agent may deem advisable. The Security Agent shall have no duty as to the collection or protection of the Pledged Collateral or any income thereon, nor as to the preservation of rights against prior parties, nor as to the preservation of any rights pertaining thereto beyond the safe custody thereof as set forth in Section 7.03.

(b) All rights of the Security Agent hereunder, the Security Interest and all obligations of the Pledgors hereunder shall be absolute and unconditional irrespective of (i) any lack of validity or enforceability of the Senior Facilities Agreement or any other Debt Document any agreement with respect to any of the Secured Obligations or any other agreement or instrument relating to any of the foregoing, (ii) any change in the time, manner or place of payment of, or in any other term of, all or any of the Secured Obligations, or any other amendment or waiver of or any consent to any departure from the Senior Facilities Agreement or any other Debt Document or any other agreement or instrument, (iii) any taking, exchange, release or non-perfection of any Lien on other collateral, or any release or amendment or waiver of or consent under or departure from or any acceptance of partial payment thereon and or settlement, compromise or adjustment of any Secured Obligation or of any guarantee, securing or guaranteeing all or any of the Secured Obligations, (iv) any manner of sale or other disposition of any Pledged Collateral or any other collateral for all or any of the Secured Obligations or any other Obligations of any other Pledgor under or in respect of the Senior Facilities Agreement, (v) any change, restructuring or termination of the corporate structure or existence of any Pledgor or any of its Subsidiaries or any other assets of any Pledgor or any of its Subsidiaries, (vi) any failure of any Secured Party to disclose to any Pledgor any information relating to the business, condition (financial or otherwise), operations, performance, assets, nature of assets, liabilities or prospects of any other Pledgor now or hereafter known to such Secured Party (each Pledgor waiving any duty on the part of the Secured Parties to disclose such information), (vii) the failure of any other person to execute this Pledge Agreement or any other Debt Document, guaranty or agreement or the release or reduction of liability of any Pledgor or other pledgor or surety with respect to the Secured Obligations or (viii) any other

circumstance that might otherwise constitute a defense available to, or a discharge of, any Pledgor in respect of the Secured Obligations or this Pledge Agreement.

(c) Until such time this Pledge Agreement shall terminate in accordance with Section 12, and except as otherwise permitted by the terms of the other Debt Documents, each Pledgor will not exercise any rights which it may have by reason of performance by it of its obligations under this Pledge Agreement: (i) to be indemnified by any other obligor under the Debt Documents; (ii) to claim any contribution from any guarantor of any Pledgor's or other obligor's obligations under any Debt Document; and/or (iii) to take the benefit (in whole or in part and whether by way of subrogation or otherwise) of any rights of the Secured Parties under the Debt Documents or of any other guarantee or security taken pursuant to, or in connection with, any Debt Document by any Secured Party.

Section 9. Marshalling. Neither the Security Agent nor any other Secured Party shall be required to marshal any present or future collateral security (including but not limited to this Pledge Agreement and the Pledged Collateral) for, or other assurances of payment of, the Secured Obligations or any of them or to resort to such collateral security or other assurances of payment in any particular order, and all of its rights hereunder and in respect of such collateral security and other assurances of payment shall be cumulative and in addition to all other rights, however existing or arising. To the extent that it lawfully may, each Pledgor hereby agrees that it shall not invoke any law relating to the marshalling of collateral which might cause delay in or impede the enforcement of the rights of the Security Agent or any other Secured Party under this Pledge Agreement or under any other instrument creating or evidencing any of the Secured Obligations or under which any of the Secured Obligations is outstanding or by which any of the Secured Obligations is secured or payment thereof is otherwise assured, and, to the extent that it lawfully may, each Pledgor hereby irrevocably waives the benefits of all such laws.

Section 10. Proceeds of Dispositions. Any amounts received by the Security Agent in connection with the Pledged Collateral after the pledge under this Pledge Agreement has become enforceable must be applied in accordance with the terms of the Intercreditor Agreement.

Section 11. Overdue Amounts. All amounts due and payable by any Pledgor hereunder shall constitute Secured Obligations and, whether before or after judgment, shall bear interest until paid at a rate per annum equal to the Default Rate.

Section 12. Reinstatement. Notwithstanding the provisions of Section 13, the obligations of each Pledgor pursuant to this Pledge Agreement and the Security Interests shall continue to be effective or automatically be reinstated, as the case may be, if at any time payment or recovery of any of the Secured Obligations is rescinded or otherwise must be restored or returned by the Security Agent or any other Secured Party upon the insolvency, bankruptcy, dissolution, liquidation or reorganization of any Pledgor or any other obligor or otherwise, all as though such payment or recovery had not been made.

Section 13. Termination. Without prejudice to the provisions of any other Debt Document requiring the Security Agent to release all or part of the Liens created by this Pledge Agreement (including Section 1.03(e)), this Pledge Agreement and the security interests created

hereby shall terminate upon the end of the Security Period, or if earlier, as otherwise required by the Intercreditor Agreement.

Section 14. Miscellaneous.

14.01. Notices. All communications and notices hereunder shall be in writing and given as provided in the Senior Facilities Agreement or any other Debt Document.

14.02. Counterparts; Effectiveness. This Pledge Agreement may be executed in counterparts (and by different parties hereto in different counterparts), each of which shall constitute an original, but all of which when taken together shall constitute a single contract. This Pledge Agreement shall become effective when it shall have been executed by the Security Agent and the Security Agent shall have received counterparts hereof that, when taken together, bear the signatures of each of the other parties hereto. Delivery of an executed counterpart of a signature page of this Pledge Agreement by electronic transmission shall be effective as delivery of a manually executed counterpart of this Pledge Agreement.

14.03. Headings. Section and subsection headings in this Pledge Agreement are included for convenience of reference only and shall not affect the interpretation of this Pledge Agreement.

14.04. No Strict Construction. The parties hereto have participated jointly in the negotiation and drafting of this Pledge Agreement. In the event an ambiguity or question of intent or interpretation arises, this Pledge Agreement shall be construed as if drafted jointly by the parties hereto and no presumption or burden of proof shall arise favoring or disfavoring any party by virtue of the authorship of any provisions of this Pledge Agreement.

14.05. Severability. If any provision of this Pledge Agreement is held to be illegal, invalid or unenforceable, (a) the legality, validity and enforceability of the remaining provisions of this Pledge Agreement shall not be affected or impaired thereby and (b) the parties shall endeavor in good faith negotiations to replace the illegal, invalid or unenforceable provisions with valid provisions the economic effect of which comes as close as possible to that of the illegal, invalid or unenforceable provisions. The invalidity of a provision in a particular jurisdiction shall not invalidate or render unenforceable such provision in any other jurisdiction.

14.06. Survival of Agreement. All covenants, agreements, representations and warranties made by any Pledgor herein and in the certificates or other instruments prepared or delivered in connection with or pursuant to this Pledge Agreement shall be considered to have been relied upon by the Security Agent and the other Secured Parties and (until the Discharge Date) shall survive the execution and delivery of the Senior Facilities Agreement and the other Debt Documents and the advance of all extensions of credit contemplated thereby, regardless of any investigation made by the Security Agent or any other Secured Party or on their behalf and notwithstanding that the Security Agent or any other Secured Party may have had notice or knowledge of any Default at the time of any extension of credit, and shall continue in full force and effect until this Pledge Agreement shall terminate (until the Discharge Date or thereafter to the extent provided herein).

14.07. Binding Effect. This Pledge Agreement is binding upon the Pledgors and the Security Agent and their respective successors and assigns, and shall inure to the benefit of the Pledgors, the Security Agent and the other Secured Parties and their respective successors and assigns, except that each Pledgor shall not have any right to assign or transfer its rights or obligations hereunder or any interest herein (and any such assignment or transfer shall be void) except as expressly contemplated by this Pledge Agreement or the Senior Facilities Agreement.

14.08. Waivers; Amendments.

(a) No failure or delay of the Security Agent in exercising any power or right hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any such right or power, or any abandonment or discontinuance of steps to enforce such a right or power, preclude any other or further exercise thereof or the exercise of any other right or power. The rights and remedies of the Security Agent hereunder and of the Secured Parties under the Senior Facilities Agreement and other Debt Documents are cumulative and are not exclusive of any rights or remedies that any of them would otherwise have. No waiver of any provisions of this Pledge Agreement or consent to any departure by any Pledgor therefrom shall in any event be effective unless the same shall be permitted by paragraph (b) below, and then such waiver or consent shall be effective only in the specific instance and for the purpose for which given. No notice to or demand on any Pledgor in any case shall entitle any Pledgor to any other or further notice or demand in similar or other circumstances.

(b) Neither this Pledge Agreement nor any provision hereof may be waived, amended or modified except pursuant to an agreement or agreements in writing entered into by the Security Agent and each Pledgor, subject to any consent required in accordance with the relevant Debt Documents.

14.09. Governing law; Jurisdiction; Etc.

(a) GOVERNING LAW. THIS PLEDGE AGREEMENT SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF NEW YORK.

(b) Submission to Jurisdiction. Each Pledgor irrevocably and unconditionally submits, for itself and its property, to the nonexclusive jurisdiction of the courts of the State of New York sitting in New York County and of the United States District Court of the Southern District of New York, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Pledge Agreement or any other document executed in connection herewith or for recognition or enforcement of any judgment, and each of the parties hereto irrevocably and unconditionally agrees, to the fullest extent permitted by applicable law, that all claims in respect of any such action or proceeding may be heard and determined in such New York state court or in such federal court. Each of the parties hereto agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law. Nothing in this Pledge Agreement or in any other Debt Document shall affect any right that the Security Agent or any other Secured Party may otherwise have to bring any action or proceeding relating to this

Pledge Agreement or any other document executed in connection herewith against a Pledgor or its properties in the courts of any jurisdiction.

(c) Waiver of Venue. Each Pledgor irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to this Pledge Agreement or any other document executed in connection herewith in any court referred to in paragraph (b) of this Section. Each of the parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, the defense of an inconvenient forum to the maintenance of such action or proceeding in any such court.

(d) Service of Process. Each party hereto irrevocably consents to service of process in the manner provided for notices in Section 14.01. Each Pledgor irrevocably appoints US Bidco, at 1209 Orange Street, Wilmington, New Castle County, Delaware 19801, as its authorized agent on which legal process may be served in any action, suit or proceeding brought in any in any court referred to in paragraph (b) of this Section. Each Pledgor agrees that service of process in respect of it upon such agent, together with written notice of such service given to such Pledgor in the manner provided for notices in Section 14.01, shall be deemed to be effective service of process upon such Pledgor in any such action, suit or proceeding. Each Pledgor agrees that the failure of such agent to give notice to it of any such service shall not impair or affect the validity of such service or any judgment rendered in any such action, suit or proceeding based thereon. If for any reason such agent shall cease to be available to act as such, each Pledgor agrees to irrevocably appoint another such agent in New York City, as its authorized agent for service of process, on the terms and for the purposes specified in this paragraph (d). Nothing in this Pledge Agreement or any other document executed in connection herewith will affect the right of any party hereto to serve process in any other manner permitted by applicable law or to obtain jurisdiction over any party or bring actions, suits or proceedings against any party in such other jurisdictions, and in such matter, as may be permitted by applicable law.

14.10. WAIVER OF JURY TRIAL. EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS PLEDGE AGREEMENT OR ANY OTHER DOCUMENT EXECUTED IN CONNECTION HEREWITH OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH PARTY HERETO (A) CERTIFIES THAT NO REPRESENTATIVE, AGENT OR ATTORNEY OF ANY OTHER PERSON HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PERSON WOULD NOT, IN THE EVENT OF LITIGATION, SEEK TO ENFORCE THE FOREGOING WAIVER AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HERETO HAVE BEEN INDUCED TO ENTER INTO THIS PLEDGE AGREEMENT AND ANY OTHER DOCUMENTS EXECUTED IN CONNECTION HEREWITH BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION.

[Remainder of page left blank intentionally; signatures follow.]

IN WITNESS WHEREOF, intending to be legally bound, each party hereto has caused this Pledge Agreement to be duly executed as of the date first above written.

ACTIUM MIDCO 3 (UK) LIMITED,
as Pledgor

By: 

Name: Charles Henry Welham

Title: Director

GLAS TRUST CORPORATION LIMITED,
as S

By:



Title: Authorised Signatory

Sarah Oldfield
Senior Transaction Manager

**Schedule 1 to Pledge Agreement
Pledged Collateral**

Actium Midco 3 (UK) Limited

- Exact Name of the Pledgor and Place of Organization: Actium Midco 3 (UK) Limited, a limited liability company incorporated in England & Wales with registered number 15736277
- Address of the Pledgor: 5 Marble Arch, London, United Kingdom, W1H 7EJ
- Description of Pledged Collateral:

Issuer of Equity Interests	Class of Equity Interests	Certificate Numbers	Number of Equity Interests	Percentage of total Equity Interests of such Issuer
Actium Bidco (US), Ltd.	Common Stock	1	1	100%